

**BEFORE THE
FEDERAL MARITIME COMMISSION**

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Docket No. 15-08

OFFICE OF THE SECRETARY
FEDERAL MARITIME COMMISSION

GENERAL MOTORS LLC

Complainant,

v.

**NIPPON YUSEN KABUSHIKI KAISHA;
WALLENIOUS WILHELMSSEN LOGISTICS AS; and
EUKOR CAR CARRIERS INC.**

Respondents.

**JOINT MOTION TO SEAL JOINT SUBMISSION OF GENERAL MOTORS LLC,
WALLENIOUS WILHELMSSEN LOGISTICS AS, AND EUKOR CAR CARRIERS
REGARDING THE SETTLEMENT AGREEMENT**

Pursuant to Federal Maritime Commission Rule of Practice and Procedure 5, 46 C.F.R. § 502.5, Complainant General Motors LLC (“GM”) and specially appearing Respondents Wallenius Wilhelmsen Logistics AS (“WWL”) and EUKOR Car Carriers, Inc. (“EUKOR”) (collectively, GM, WWL, and EUKOR are the “Settling Parties”) jointly move to seal the entirety of the Joint Submission of GM, WWL, and EUKOR Regarding the Settlement Agreement (the “Joint Submission”).

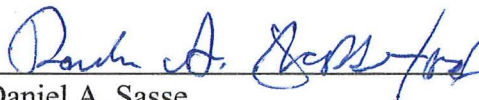
In her Initial Decision dated July 29, 2016, the Presiding Officer held, “Given the parties’ request for confidentiality, commercially sensitive material included in the Settlement Agreement, and the Commission’s history of permitting agreements settling private complaints to remain confidential, the parties’ motion to seal the Settlement Agreement is granted.” (Initial

Decision at 4.) Likewise, the Commission recognized in its Notice of Determination to Review and Order for Further Explanation dated August 26, 2016, "The Commission also agrees that the settlement agreement is confidential." (Notice of Determination to Review at 2, n.1.)

The present Joint Submission quotes directly from the confidential Settlement Agreement between the Settling Parties and analyzes certain terms of that agreement. As the Settling Parties previously argued, the entire contents of the Settlement Agreement are of a sensitive and confidential nature, and strict confidentiality was a material and necessary element of the Settlement Agreement. The entire Settlement Agreement could therefore be compromised by a breach of confidentiality. For these reasons, the Settling Parties move to seal the Joint Submission in its entirety.

Dated: September 1, 2016

Respectfully submitted,



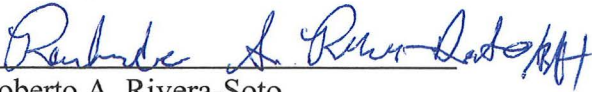
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CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document on all parties of record by electronic mail, and submitted a copy via U.S. mail to each such person.

DATED: September 1, 2016



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